

Pilots demand reform to fight bogus self-employment

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【要点】

- ・欧州のパイロットは秋に予定されているAir Services Regulation改革を利用して、航空会社が正社員として働いているパイロットを自営業者に誤分類する「偽りの自営業」の慣行に対処したいと考えている。
- ・ゲント大学の調査によると、欧州のパイロットの約10.3%が「非典型雇用」であり、うち自営業者は約5.8%であるが、実際の数字はさらに高い可能性がある。
- ・パイロットは本来の性質上、複数の航空会社との自由な兼業が不可能であるため、自営業分類は雇用保護なしに自営業の制約を受ける「一方通行」の仕組みになっている。
- ・European Cockpit Association (ECA) は、約44,000人の欧州プロフェッショナルパイロットを代表しており、航空会社は自営業パイロット数の開示義務がないため、実態把握が困難な状況である。

【メール原文】

Navigating the complex world of EU mobility policy and infrastructure. By TOMMASO LECCA with JORDYN DAHL and MARTINA SAPIO SNEAK PEEK — European pilot

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with JORDYN DAHL and MARTINA SAPIO

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SNEAK PEEK

— European pilots are eyeing the upcoming Air Services Regulation reform as an opportunity to tackle what they consider bogus self-employment among aircrews flying in the bloc.

— Volkswagen CEO is continuing his factory tour meeting with employees whose jobs are on the line as he continues to push for cost-cutting measures.

— International trains linking London with continental Europe could more than double by the end of the decade, as Eurostar faces a wave of new competition.

Good morning, and welcome to Morning Mobility.

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DRIVING THE DAY

PILOTS EYE REFORM TO TACKLE BOGUS SELF-EMPLOYMENT: European pilots want the upcoming reform of the Air Services Regulation — expected this fall — to tackle abuses in employment arrangements, arguing that airlines misclassify some pilots as self-employed even though they work like employees.

A Ghent University study of European pilots published last year found that 10.3 percent of them are “atypically employed, with the highest numbers for self-employment,” which accounted for around 5.8 percent of respondents.

But the figure could be higher, according to the European Cockpit Association (ECA), which represents around 44,000 professional pilots across Europe. The research, conducted in partnership with ECA, relied on a questionnaire sent to unionized pilots, the association told Tommaso. Many self-employed pilots are not union members, ECA added, while aircraft operators are not required to disclose how many self-employed pilots they have on staff.

ECA argues that airlines are using self-employment arrangements to classify pilots as freelancers even though many work like regular employees. They say those arrangements deprive pilots of employment protections while offering few of the freedoms that normally come with freelance work.

Freelancing among the clouds: A pilot’s job is, by its nature, poorly suited to working as a freelancer for multiple airlines, according to Anastasiia Demircan, ECA’s policy manager for legal and social affairs. “You cannot fly simultaneously for two operators because there are different courses that you need to finish, different rosters … there are flight time limitations in Europe and you need abide by them,” Demircan told Tommaso, also pointing to differences in airlines’ Standard Operating Procedures. ECA describes self-employment as a “one-way street” for pilots, who bear the disadvantages associated with freelance work without enjoying one of its main benefits: the ability to work for multiple companies.

Is this dangerous? A recent report by the EU Aviation Safety Agency on aviation workers’ conditions concluded that although “certain non-standard employment arrangements may create organisational and psychosocial conditions relevant to aviation safety … the evidence does not establish direct causality between atypical contracts and safety outcomes.”

Recent disputes: In August alone, Poland’s labor authority launched an investigation into LOT Polish Airlines over self-employment contracts, while hundreds of pilots who worked for Ryanair sued the carrier, claiming they are owed holiday pay. Ryanair did not respond to a request for comment regarding the latest lawsuit. Atypical employment arrangements are also used by companies that lease aircraft and crews to airlines under so-called wet-lease agreements.

The regulatory aspect: The current Air Services Regulation — which sets key rules governing airlines’ access to and operation within the EU aviation market — does not prevent carriers from hiring pilots on a self-employed basis.

Matter of competence: Labor law remains largely a national competence, Demircan acknowledged. Despite that limitation, ECA is pushing “for EU not to have self-employed pilots or to have all of the self-employed pilots recognized as direct employees” in terms of rights and working conditions.

There’s a precedent: ECA points as a possible precedent the Platform Work Directive, which introduced a legal presumption of employment under certain conditions. Drawing a parallel with food-delivery riders, Demircan said it was “ridiculous” that pilots did not benefit from similar protections under EU law.

CARS

VW CEO GOES BEFORE WORKERS AS JOB CUTS CONTINUE: Oliver Blume is going before Volkswagen workers for a second consecutive day to answer questions about the 100,000 planned layoffs and factory closures. If the first day is anything to go by, he won't be receiving a warm welcome. Today he will appear at the Emden and Zwickau factories — both of which are at risk of closing.

Missing details: Blume started his tour on Tuesday at VW's main factory in Wolfsburg where he addressed more than 10,000 gathered workers. But his appearance did little to quell anxieties about the cuts or provide clarity on the fate of the factories, Daniela Cavallo, the chairwoman of the works council, said in a press release after the closed-door discussion. The CEO "missed his chance," she said.

More layoffs coming: VW already negotiated a 50,000-person reduction by 2030 with the works council. But the German automaker wants to cut an additional 50,000 jobs, "about half" of which would be jobs in Germany, Blume told employees. According to IG Metall's calculations, the total job cuts number closer to 115,000 jobs if the four plants are shuttered. Blume said the goal is for the board to "create reliable prospects for all locations in the next 6 to 12 months."

Politicians enter the fray: Lower Saxony premier Olaf Lies, who sits on VW's supervisory board, made his own appearance at Volkswagen on Tuesday with the works council, telling union representatives that the automaker's board needs to focus on staying competitive. He has promised to resist the planned cost-cutting measures.

Need protection: Lies, a member of the Social Democrats, argued that Europe's automakers need protection from Chinese manufacturers that are flooding the EU with electric vehicles and hybrids. The European Commission slapped duties on made-in-China EVs but hybrids are exempt. "That's why my expectation of the European Union is that appropriate measures will now be taken there as well, so that we also have fairness in the market there [with hybrids]," he said.

Next up: Blume meets with the VW board on Sept. 4 where he will take a second shot at pushing through his proposed cuts. His previous attempt in July failed to garner the necessary votes.

LEAPMOTOR'S SPAIN FACTORY SET TO OPEN THIS YEAR: The Chinese automaker is setting up an assembly shop in Zaragoza through its partnership with French-Italian-American carmaker Stellantis. The factory, which is owned by Stellantis, has "completed the supporting facility modifications" and is expected to start production in the next three months, Leapmotor said in its financial earnings on Tuesday. A battery plant nearby is similarly expected to start production in the third quarter of this year.

RAIL

THE RACE FOR THE CHANNEL: International trains linking London with continental Europe could more than double by the end of the decade, potentially bringing departures from St. Pancras as often as every 15 minutes as Eurostar faces a wave of new competition, our colleague Jon Stone reports.

The background: Infrastructure owners have long wanted a second operator to challenge Eurostar on routes to Paris, Brussels and Amsterdam and make better use of spare Channel Tunnel capacity. That is finally taking shape after U.K. regulator ORR last week cleared Virgin to run up to 20 daily services linking London with Paris, Brussels and Amsterdam from October 2030.

Enter the Italians: Trenitalia has found another way in. Italy's state railway has ordered 19 new Hitachi high-speed trains, some intended for Channel Tunnel services, and says it plans to operate 10 services a day from 2029 by building a new €80 million depot at Maisons-Alfort Pompadour, south of Paris, to maintain trains operating between France and Italy. It says that facility can also maintain its future London fleet.

Don't book yet: Plenty could still derail those ambitions. Operators need separate track-access approvals in each country and through the Channel Tunnel, while previous challengers — notably Deutsche Bahn — planned cross-Channel services that never materialized.

The next bottleneck: The Channel Tunnel link itself was designed for up to eight international high-speed trains an hour, but St Pancras is another matter. Its cramped international terminal is already under pressure, with plans now under way to double passenger capacity by 2028 and pursue further expansion in the 2030s.

PIT STOPS

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